

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

March 26, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Pierson. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. Mayor Kaysen recognized members of the Mighty Eagles 4-H Club present at the meeting. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Mr. Allen, agenda item # 18(b) was removed from the Consent Agenda. Upon request by Ms. Ash, and pursuant to support received by Mr. Collins and Ms. Broyles, agenda items #17(b) and (c) were removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 12, 2012. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and Radio Station KYOY FM respectively) and vacated Council Chambers. Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning classification from MUB Mixed Use with Business Emphasis and MR-2 Medium Density Residential – Developing Districts to CB Community Business District for Lots 1-10, Block One, College Business Park, 3rd Filing, Cheyenne, Wyoming (located east of and adjacent to N. College Drive, between Laramie and Charles Streets). Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established, and Section 17.08.040, Cheyenne City Map, of the Cheyenne City Code, by changing the zoning

classification from CB Community Business District to HR-2 High Density Residential - Developing District for Lot 4, Block One, Gateway South, 3rd Filing, Cheyenne, Wyoming (located east of and adjacent to Walterscheid Boulevard, south of W. Fox Farm Road). Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#5367)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for The Crossroads Center, Second Filing, a replat of a portion of Lots 2 and 4, and all of Lot 3, Block 2, The Crossroads Center, Cheyenne, Wyoming (located north of and adjacent to Greenway Street, east of College Drive). Motion (per Consent Agenda) carried. (#5368)

Resolution granting, with conditions, an exception for development of a small wastewater system pursuant to the ‘201 Agreement’ and authorizing the Mayor and City Clerk to execute a development agreement for property described as a tract of land in N1/2N1/2NE1/4NE1/4 of Section 11, Township 13 North, Range 67 West, of the 6th P.M. (a/k/a 4121 West 5th Street), Cheyenne, Laramie County, Wyoming. Ms. Ash moved to adopt, seconded by Dr. Rinne. Ms. Ash moved to amend by substitute dated as to form March 26, 2012, seconded by Dr. Rinne. Brief history of the agenda item topic and purpose of the proposed substitute were noted. It was advised the applicant has agreed to annex two parcels now and a third parcel in the future in exchange for the exception to ‘201 agreement’ provisions, and that the exception will be in effect for 10 years. Upon inquiry and with no objection raised by City Council members, Mayor Kaysen stated he would open the floor again for comments from the public due to the substitute being proposed. Ray Martin, legal counsel for the applicant, expressed appreciation to staff and governing body members for their willingness to work together to reach a compromise for the best interests of all parties. Motion to amend carried. Voting “yes” -- all members of the governing body present. Comments followed regarding Wyo. Dept. of Transportation’s shortage of funding for road projects and concern that an anticipated reconstruction project expected to involve some of the land may not move forward, affecting the exception and temporary permit for the small wastewater system. Main motion as amended by substitute carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Ash voting “no”. (#5369)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for College Business Park, 3rd Filing, a replat of a portion of Tract 101 and all of Tracts 102, 103 and 104, Sunnyside Addition, Fourth Filing, Cheyenne, Wyoming (located east of and adjacent to N. College Drive, between Laramie and Charles Streets) -- referred to Public Services Committee (sponsor -- Ms. Ash).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Gateway South, 3rd Filing, a replat of Lots 1, 2, 4 and 5, Block One, Gateway South, 2nd Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. Fox Farm Road and Walterscheid Boulevard) -- referred to Public Services Committee (sponsor -- Ms. Ash).

[CA] Resolution approving Sanitary Sewer Service, by Outside User Agreement, with Michael Moore, 3133 Lindblom Court, Cheyenne, Wyoming -- referred to Finance Committee (sponsor -- Mr. Valdez).

[CA] Resolution recognizing and Supporting the use of Fiscal Year 2011-2012 Ward 1 Contingency funds and 2011-2014 Optional One Percent Sales Tax funds for the construction of a new Tennis Court in Martin Luther King, Jr., Park -- referred to Finance Committee (sponsor -- Ms. Ash).

[CA] Resolution approving a proposition to impose the 1% Specific Purpose Sales and Use Tax in Laramie County, State of Wyoming, for the exclusive purpose of funding specific purposes for specific amounts; the propositions to be voted on at the Primary Election to be held on Tuesday, August 21, 2012 -- referred to Finance Committee (sponsors -- Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne, Mr. Spiker, Mr. Valdez, Mayor Kaysen).

[CA] Professional Services Letter of Intent between the City of Cheyenne and Kaiser and Company, Cheyenne, Wyoming, to refinance outstanding Series 2003 Revenue Bonds for the City Center Parking Structure (postponed from March 12, 2012). Motion (per Consent Agenda) carried. (#5810)

Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Carey Junior High School (21<sup>st</sup> Century Community Learning Centers Cohort Five grant funds). Ms. Ash declared a conflict of interest (employment conflict) and vacated Council Chambers. Mr. Brown moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#5811)

Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Johnson Junior High School (21<sup>st</sup> Century Community Learning Centers Cohort Four grant funds). Ms. Ash declared a conflict of interest (employment conflict) and vacated Council Chambers. Mr. Brown moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#5812)

[CA] Agreement between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department and Laramie County, Wyoming, for housing City prisoners at the Laramie County Detention Center. Motion (per Consent Agenda) carried. (#5813)

[CA] Professional Services Agreement between the City of Cheyenne and All Traffic Data Services, Inc. for data collection for the Updated Turning Movement Count Project (Metropolitan Planning Organization (MPO) Federal funding) -- referred to Finance Committee.

[CA] User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Warriors Football Club, LLC, for the purpose of holding arena football games and related practices at the City of Cheyenne-owned Ice and Events Center -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, to provide a Cheyenne Transit bus to use in service of Stride's Clients -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Tatooine Electronic Systems, Inc., for recycling of electronic waste received at the Felix Pino Transfer Station Waste Facility and Happy Jack Landfill -- referred to Finance Committee.

Contract Modification No. 2 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayres Associates for additional design services for the East Pershing Boulevard reconstruction project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds) (postponed from March 12, 2012). Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was clarified the substitute provides for an increase in the modification amount to \$41,645.00 for additional design work. Doug Vetter, City Engineer, advised the modification was originally intended to have the consultant reconfigure the East Pershing project in two separate corridors, and with the amendment an additional segment is being included to extend the project west by seven blocks due to additional federal funds that are available. Upon inquiry, Mr. Vetter estimated construction cost for the additional segment will be about \$400,000.00. Motion to amend carried. Voting "yes" -- all members of the governing body present. Comments followed regarding funding and splitting the project into phases, additional segment and related design cost (\$21,175.00) per the amendment, and previous demolition of two houses in the project area. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present with the exception of Dr. Rinne voting "no". (#5496)

Amendment No. 1 to Professional Services Agreement/Contract No. 5613 between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and Felsburg, Holt and Ullevig for South Greeley Highway Corridor Plan - Supplemental Budget Request. Pat Crank, attorney representing local business owner Maury Brown, spoke in opposition to the plan as currently drafted. He explained his client is concerned about highway traffic control structures envisioned in the plan through implementation of raised medians; effect of limited access to businesses in the area, and proposed future side road accesses along the "backside" of businesses. Mr. Crank provided information on stakeholders' meetings that had been held to receive public comments in conjunction with formulation of the plan, noting that Mr. Brown and/or his representative had voiced opposition to the raised median concept at the meetings, and encouraged consideration of other alternatives. He spoke in opposition to the proposed amendment to the agreement, stating the additional services to be provided, which includes more time to receive public comments, was not a serious commitment to listen to residents and business owners in the area pursuant to their previous input. Upon inquiry, Mr. Crank reviewed stakeholders' meetings held so far and made statements in support of the consultant and MPO staff listening to those who had voiced opposition to the concept of raised medians. Mark Shubert, business owner in South Greeley

Highway area, spoke in opposition to the plan and the proposed amendment. He commented on lack of communication with business owners; raised median concerns; out of state consultants; MPO authority; state highway department involvement and timing regarding reconstruction plans, and suggested other traffic flow options in lieu of raised medians. John Palmer expressed his concurrence with most of Mr. Shubert's comments and spoke in opposition to the plan and cost of the study. Tom Mason, MPO Director, reviewed the project generally, stating the need for a corridor plan had been identified by MPO committee members, consisting of representatives of City and County governments and State WYDOT, as a planning project. He explained this is a long term project, which will not be implemented in the near future, to pro-actively address the corridor's traffic problems. He stated a wide variety of solution options are being reviewed and that the amendment will enable the consultant to continue work on the plan, which includes additional meetings with the public and property owners in the area, and the goal is to address, through planning, the best way to deal with traffic issues and anticipated future volume increases on South Greeley highway. He advised the consultant, a Colorado firm, is a well known transportation planning firm and was selected to provide initial services through the usual review and approval process. Upon inquiry, Mr. Mason described the purpose of raised center medians as a safety solution and current problems associated with numerous points of access to properties along the corridor; stated the draft plan and initial maps are not yet finalized as a policy statement and are subject to revision(s), and provided information on planning for future area growth through additional north-south roads, traffic safety solutions and current volume of traffic. Mr. Mason advised efforts of the study will also help with beautification along the corridor by including a plan for sidewalks and bike ways, etc. Mr. Mason provided clarification on additional expenses related with the amendment; information on the consultant's work achieved under the original proposal and additional work pursuant to the amendment, and noted the final plan will be presented to the public and property owners and also to the MPO committee and City and County governing bodies for approval. Upon inquiry as to status of the plan if the amendment was not approved, Mr. Mason indicated MPO staff will take what information they have and try to finalize, but the plan may not be complete. Discussion included the following topics: Raised center medians; service roads and traffic circulation; access issues that may affect property owners; traffic volume along the corridor; initial scope of the project; rights-of-way acquisition concerns affiliated with future area developments or redevelopments; stakeholders' meetings; purpose of the amendment, which will include additional stakeholders' meetings, and provisions of the original agreement and cost of consultant's services to date. During discussion, Mr. Mason provided additional information upon request and noted the City's governing body serves as the fiscal agent for the MPO. Mr. Shubert expressed his concerns with the effect of raised medians/barriers on businesses; communication with stakeholders, and traffic flow issues and alternatives. Dino Moncecchi, resident in the area, suggested waiting to do a final plan based upon an updated traffic analysis when WYDOT is closer to acquiring funding to do reconstruction of the highway. Bob McCue, stating he does work for Mr. Brown, spoke in opposition to the amendment, commenting on the cost involved to complete the plan and questioning whether provisions of the initial contract required the consultant to produce a deliverable product. Mr. Brown moved to approve in an amount not to exceed \$20,050.00. Motion died due to lack of a second to the motion.

[CA] Contract Modification No. 2 to Contract No. 5697 between the City of Cheyenne and STC Construction Co., Cheyenne, Wyoming, for bridge repairs on the Westland Road Overlay and

Improvements Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$19,089.35). (#5697)

[CA] Amendment Number Six to Cooperative Agreement, Contract No. 4968, between the City of Cheyenne and Wyoming Department of Transportation for reconstruction of Pershing Boulevard from I-25 to Pioneer Avenue (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-23-12 for furnishing stage drapery for the City of Cheyenne Civic Center. Motion (per Consent Agenda) carried (Rose Brand Wipers, Inc., Secaucus, NJ; amount not to exceed \$46,125.00)

[CA] Consideration of Bid #R-30-12 for surplus sale of one Express Dual 1000 reel grinder, one Anglemaster 2000 bed knife grinder, and one Toro greens aerator for the City of Cheyenne, Parks and Recreation Department, Golf Division. Motion (per Consent Agenda) carried (Custer Golf Corp. d/b/a Rock Knolls Golf Course, Custer, SD; revenue to the City \$4,512.00)

[CA] Consideration of Bid #M-11-12 for annual Contract between the City of Cheyenne and Simon Contractor, Cheyenne, Wyoming, for annual Contract for furnishing aggregate for the Street and Alley Division (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$4.60/ton). (#5814)

[CA] Consideration of Bid #M-12-12 for annual Contract between the City of Cheyenne and Knife River, Cheyenne, Wyoming, for annual Contract for hot plant mix, asphalt tack oil and cold mix for the Street and Alley Division (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (hot mix \$52.35/ton; tack oil \$1.10/gallon; cold mix \$78.50/ton). (#5815)

[CA] Consideration of Bid #M-13-12 for Contract between the City of Cheyenne, Parks and Recreation Department, and Chalk Buttes Landscaping, Inc., Douglas, Wyoming, for Lions Park Remediation project. Motion (per Consent Agenda) carried (amount not to exceed \$136,698.00). (#5816)

[CA] Consideration of Bid #R-31-12 for furnishing 68 new desktop computers for the City of Cheyenne, Information Technology Division, pursuant to the City's replacement program (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-14-12 for a Contract between the City of Cheyenne, Street and Alley and 1% Construction Divisions, and Miller & Sons Construction, Inc., Cheyenne, Wyoming, for the annual concrete overlay project (2007-2010, 2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-26-12 for furnishing one new 2012 stake bed truck from Spradley Barr Motors, Inc., Cheyenne, Wyoming, for the Sanitation Division (Solid Waste fund) -- referred to Finance Committee.

[CA] Consideration of Bid #R-27-12 for furnishing one new semi-truck from Peterbilt of Wyoming, Cheyenne, Wyoming, for the Sanitation Division (Solid Waste fund) -- referred to Finance Committee.

Appointment of Catherine Nicholas and Maida Wedell to the Arts In Public Places Committee. Mr. Collins moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held Monday, April 9, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for Fiscal Year 2012-2013 Annual Action Plan, City of Cheyenne Community Development Block Grant (CDBG) entitlement.

Announcement was made of a Public Hearing to be held Monday, April 9, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a Bar and Grill liquor license application filed with the City Clerk's Office for Blazin Wings, Inc. d/b/a Buffalo Wild Wings Grill & Bar, 1740 Prairie Avenue, Cheyenne, Wyoming.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:25 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle  
April 5, 2012